Expert Opinion **Artificial Intelligence**

Navigating the AI-Informed Client: Integrity in the Age of Artificial Advice

AI chatbots are increasingly influencing clients in family law and mental health, often spreading confident but inaccurate info. Professionals should address AI use openly, review AI outputs carefully, and focus on applying their judgment. By doing so, they can build trust and use AI as a helpful tool, strengthening their role rather than replacing it.

March 23, 2026 at 08:01 AM By **Elisa Reiter & Daniel Pollack**

Elisa Reiter and Daniel Pollack

There is a particular kind of frustration that has become familiar to family law attorneys and mental health professionals over the past several years—the client who arrives at an appointment having already consulted an artificial intelligence chatbot.

Such a client has pointed, confident, and sometimes, accusatory questions. Such questions are grounded in answers the client hopes to receive from the professional with whom they are consulting. The answers gleaned from chatbots may be partially correct, contextually wrong, or simply inapplicable to their jurisdiction, their facts, or their circumstances.

This is not a problem that will go away. AI tools have become embedded in the way ordinary people seek

information, and that includes people navigating the most difficult moments of their lives. These include divorce, child custody disputes, trauma recovery, and co-parenting conflicts. The impulse to consult an AI chatbot at 2 a.m. when anxiety peaks, before the attorney returns a call, or the therapist has an opening, is entirely understandable.

What is less understandable is how professionals should respond when that prior consultation with an entity driven by artificial intelligence undermines the therapeutic or legal relationship rather than supporting it. There is also a second, related tension of the growing pressure on attorneys to use AI tools to streamline document review, case preparation, and correspondence, versus the genuine ethical and professional risks that come with doing so carelessly.

These two challenges share a common thread. AI is a powerful tool that can amplify both good judgment and bad. The question for professionals is not whether to engage with AI-informed clients or whether to use AI in practice. The question is how to do both with integrity.

The AI-Informed Client

A client preparing for a custody mediation session types into an AI chatbot: "What is the standard for awarding sole custody in a contested divorce?" The AI responds with a confident, well-organized answer citing "the best interests of the child" standard, listing relevant factors, and perhaps even describing how courts have weighed those factors in published opinions.

The answer is not wrong, exactly. But it may not account for how courts in their specific county have interpreted those factors. It will not reflect the reputation or predispositions of the judge assigned to their case. It will not incorporate the particular facts in their file, the credibility issues that have emerged in deposition, or the strategic considerations their attorney has already weighed.

The client, however, arrives convinced they understand the landscape. When their attorney advises a different approach, the client may resist, not because the attorney's advice is bad, but because it conflicts with the tidy answer they received from a source they felt was authoritative and was available exactly when they needed it.

Mental health professionals encounter similar dynamics. A patient processing trauma after a contentious divorce reads AI-generated content about grief stages, trauma responses, or even the psychological effects of parental alienation. They arrive at their next session having self-diagnosed, having developed expectations about their recovery timeline, or, more problematically, having formed opinions about whether their therapist is "doing it right."

Waiver of Attorney Client Privilege

In *United States v. Heppner*, No. 25-cr-00503-JSR (S.D.N.Y.), Judge Jed S. Rakoff ruled from the bench on Feb. 10, 2026, and confirmed in a written opinion a week later, that documents defendant Bradley Heppner

generated using the consumer version of Anthropic's Claude were protected by neither attorney-client privilege nor the work-product doctrine.

The court found that by voluntarily sharing prompts with a third-party AI platform whose privacy policy expressly permits disclosure to governmental authorities and use for model training, Heppner retained no reasonable expectation of confidentiality. To our knowledge, this may be the first decision holding that inputting potentially privileged information into a consumer-grade generative AI tool results in the loss of that privilege.

Why AI Answers Feel so Credible

Part of what makes this dynamic difficult is that AI responses are constructed to sound authoritative. They are grammatically polished, well-organized, and free of the hedging that characterizes careful professional advice. A therapist who appropriately says, “This varies significantly between individuals,” can appear less certain than a chatbot that confidently outlines a five-stage process. An attorney who explains "In your jurisdiction, courts weigh these factors somewhat differently" sounds less knowledgeable than a system that cites general legal standards without qualification.

AI tools are also available exactly when professional support is not: late at night, on weekends, in the moment of emotional crisis when the urge to seek answers is strongest. Not every attorney or therapist provides coverage 24/7. The convenience of chatbot access is

real, and dismissing it serves neither the client nor the professional relationship.

Practical Strategies for Attorneys

Family law attorneys should consider proactively addressing AI use early in the client relationship, not necessarily to discourage information-seeking, but to contextualize it. Consider establishing what might be called an "AI literacy" conversation at intake:

• Acknowledge that clients will consult AI tools and that this is a reasonable impulse.

• Explain the difference between general legal information (which AI can provide) and legal advice (which requires knowing their specific facts, jurisdiction, and procedural posture).

• Invite clients to bring AI-generated content to consultations and treat those conversations as teaching moments rather than corrections.

• Flag the specific ways their jurisdiction, judge, or facts may differ from general patterns.

Some attorneys have begun including a brief section in their client engagement letters addressing AI-generated information, not as a disclaimer, but as a genuine explanation of why professional advice requires context that AI cannot replicate. This sets expectations early and reduces the likelihood that a client will feel their attorney is being obstructionist when they offer nuanced guidance

that conflicts with an AI summary.

It is also worth developing a standard response for the moment a client arrives having clearly consulted AI: "I'm glad you've been doing research. Let me show you how that applies, or doesn't apply, to your specific situation." This validates the client's initiative while firmly centering the analysis in professional judgment.

Practical Strategies for Mental Health Professionals

Mental health professionals face a slightly different version of this challenge. Clinical work is inherently relational and individualized. The whole point is that general information about a diagnosis or treatment modality must be applied to this person, at this moment, in this context. AI-generated mental health content, however well-intentioned, cannot account for the therapeutic relationship, the patient's history, or the nuanced clinical observations that shape a treatment plan.

At the same time, mental health professionals should resist the impulse to simply dismiss or pathologize AI-seeking behavior. For many clients, especially those who are ambivalent about therapy or who come from backgrounds where seeking help is stigmatized, researching their own experience is a way of taking agency. That impulse deserves respect.

A productive approach involves exploring what the client was looking for when they consulted an AI tool, and what

they found. What question were they trying to answer? What did the answer make them feel? This line of inquiry often reveals underlying anxieties, questions the client has been reluctant to ask directly, or misconceptions that can be addressed in a way that deepens, rather than disrupts, the therapeutic relationship.

Clinicians should also be alert to cases where AI-generated content has been actively harmful: clients who have encountered misinformation about medications, trauma responses, or the nature of mental illness, or who have been directed toward content that reinforces avoidance or unhealthy coping strategies. In these cases

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Attorneys Using AI: Efficiency, Confidentiality, and the Duty of Competence

The same tools that clients are using to bypass professional advice are also being marketed aggressively to attorneys as practice management solutions. AI-powered document review, contract analysis, brief drafting, deposition preparation, and even predictive analytics for case outcomes are now available in forms accessible to solo practitioners and small firms.

The efficiency case is real. Family law cases generate enormous quantities of documents, including financial disclosures, text message records, custody logs, property valuations, email chains, social media archives. AI tools

can process and summarize this material far faster than any human reviewer. In high-volume practices serving clients of moderate means, the ability to reduce associate time on document review can translate directly into more affordable legal services.

But efficiency is not the only value at stake. The obligation to protect client confidentiality, the duty of competence, and the responsibility to supervise the work product that goes out under an attorney's name do not diminish because a faster tool is available. They intensify.

Confidentiality is Non-Negotiable

The most immediate risk in using AI tools for document analysis is the exposure of client information to third-party systems. Most commercial AI tools, including general-purpose large language models available to the public, process data on external servers. Uploading a client's financial disclosure, custody agreement, or sensitive communications to such a system may constitute a disclosure of confidential information in violation of professional conduct rules.

Before using any AI tool for document analysis, attorneys must conduct due diligence on the following questions:

• Where is the data processed? Was it on the attorney's local system, on a secure third-party server, or on shared infrastructure?

• Is the data used to train or improve the AI model? If so, the information may be retained and potentially

accessible.

• Does the vendor offer a data processing agreement, and does that agreement meet the requirements of applicable professional conduct rules?

• Has the firm's ethics counsel or malpractice insurer reviewed the proposed use?

Several state bar associations have issued formal ethics opinions addressing AI use in legal practice, and the landscape is evolving rapidly. Opinions from bars in California, New York, Florida, and elsewhere have generally approved AI use subject to conditions of competence and confidentiality compliance. However, the specifics vary, and attorneys should consult their state's guidance directly.

The confidentiality analysis becomes more complex in family law specifically because the opposing party is often personally known to the client, and the information at issue, including financial records, communications about children, mental health history, is among the most sensitive that clients will ever entrust to a professional. The standard of care is correspondingly high.

The Competence Problem

Beyond confidentiality, there is the question of whether attorneys are competent to use AI tools effectively and to supervise the output. Competence here has two distinct dimensions.

The first is technical. AI tools for legal practice vary widely in quality, methodology, and the types of documents they handle well. An attorney who uses a document review tool without understanding its error rate, its training data, or its known limitations is not competently using that tool, even if the outputs look authoritative.

The second dimension of competence is substantive. AI-generated summaries, analyses, and drafts must be reviewed by an attorney who knows the law well enough to catch errors. The risk is not that AI will produce obviously wrong answers. The risk is that AI will produce plausible-sounding answers that are subtly wrong in ways that require expertise to identify. An attorney who reviews AI output without the substantive knowledge to evaluate it is not supervising that output. They are endorsing it.

This has implications for family law practices that serve clients who cannot afford extensive attorney time. It may be tempting to use AI to reduce the attorney review burden in routine matters, but routine matters can contain non-routine legal issues, and the attorney's obligation to competently represent each client does not diminish because the retainer is modest.

Balancing Client Needs Against Professional Risk

There is a genuine tension here that deserves honest acknowledgment. Many clients in family law proceedings are under severe financial stress. Legal fees can consume assets that are already the subject of dispute.

The ability to process documents more efficiently and pass some of that efficiency to clients through reduced billing is a real benefit that serves real people.

The answer to this tension is not to avoid AI tools, but to use them thoughtfully, with appropriate safeguards:

• Use AI for tasks where the efficiency gain is greatest and the error risk is lowest: initial document triage, identifying relevant passages in large records, drafting correspondence that will be carefully reviewed before sending.

• Apply heightened human review to AI outputs in matters involving contested legal questions, high-stakes decisions, or information the client will rely upon in making major choices.

• Be transparent with clients about when and how AI tools are used in their matter. Some clients will have concerns. Those concerns deserve honest engagement.

• Document the review process. If AI output is reviewed and approved by an attorney, that review should be reflected in the file in a way that would survive a malpractice inquiry.

• Stay current on ethics guidance. This area is moving quickly, and yesterday's compliant practice may not be today's.

Where These Challenges Meet

Two of the dynamics described in this article, the AI-

informed client, and the AI-using attorney, are related. Both arise from the same underlying reality: AI tools have lowered the cost of producing authoritative-sounding information, and that change is restructuring the relationship between professionals and the people they serve.

For decades, professional authority rested in part on asymmetric access to information. Attorneys had the Westlaw subscription. Clients did not. Therapists had clinical training. Patients did not. That asymmetry justified deference and created space for professional judgment. AI has not eliminated that asymmetry, but it has substantially reduced it, and we hope that the reduction is mostly healthy.

Clients who have read about their legal situation are more engaged, more likely to understand the advice they receive, and better positioned to participate in decisions that affect them. Some clients want explanations and justifications for every action. Others are easily overwhelmed by information overload. People who have researched their diagnosis may be more compliant with treatment and more able to communicate their experience.

The goal is not to restore asymmetry. It is to help clients and patients use the information they have access to more productively. That requires professionals to evolve. The attorney whose value lay primarily in knowing things the client did not will find that role eroding. The attorney

whose value lies in applying knowledge to facts, navigating relationships with judges and mediators, exercising judgment under uncertainty, and advocating with both skill and credibility, is an attorney who is not threatened by AI. The same is true for the mental health professional whose value lies not in information delivery but in the relational work of clinical practice.

A Note on Trust

Underlying both challenges is a question of trust that makes professional relationships work. A client who arrives having been told by an AI that their attorney is overcharging them, or that their case should be therapist's approach is outdated, has had that trust disrupted before the professional even speaks.

The response cannot be to compete with the AI for the client's confidence, or to dismiss the AI's answers without engaging with them. The response must be to demonstrate, through the quality of professional judgment, the depth of individual attention, and the honesty of communication, that what a professional offers is genuinely different from what a chatbot can provide.

In the end, both the challenge and the opportunity that AI presents to every professional who works with people in crisis. The tools have changed. The human needs they serve have not.

Conclusion

Family law attorneys and mental health professionals are navigating a new information environment in which their clients arrive better informed, but sometimes come for an appointment poorly advised, based on information gleaned from AI chatbots. AI tools offer real efficiency gains and genuine risks in equal measure. Managing both requires a commitment to professional judgment that technology can inform but cannot replace.

What to do?

• Address AI use proactively with clients.

• Contextualize general information with specific professional advice.

• Use AI tools with appropriate confidentiality safeguards and substantive review.

• Be transparent with clients about how their information is being used.

The deeper recommendation is harder to articulate but is equally important. Professionals who engage thoughtfully with the AI landscape, who understand what these tools can and cannot do, who help clients use information more effectively, and who bring genuine human judgment to bear on complex individual situations, will find that the AI era creates more demand for their skills, not less. The challenge is to rise to that moment with the same competence and integrity that the legal profession and mental health professions have always demanded.

Elisa Reiter *is a senior attorney with Calabrese Budner.*

Daniel Pollack *is a professor at Yeshiva University's School of Social Work.*

Page printed from: https://www.law.com/newyorklawjournal/2026/03/23/navigating-the-ai-informed-client-integrity-in-the-age-of-artificial-advice/

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